



CHAPTER 48.

An Act to provide for securing farmers against low prices for oats, barley and fat sheep, and for securing a market for barley, for promoting the ploughing up in the year nineteen hundred and thirty-nine of grass land and rendering it fit for arable crops, for the establishment of a reserve of agricultural machinery, for increasing the resources of any company formed for such purposes as are mentioned in the Agricultural Credits Act, 1928, to amend the Agricultural Returns Act, 1925, and for purposes connected with the matters aforesaid. [28th July 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

OATS.

Subsidy in case of the year 1939 and subsequent years.

1.—(1) If the United Kingdom price per hundred-weight of home-grown oats harvested in the year nineteen hundred and thirty-nine, or in any subsequent year, is less than the standard price by threepence or more, then, subject to the following provisions of this Part of this Act, the appropriate Minister may, out of moneys provided by

Oats
subsidy
payments.

PART I.
—cont.

Parliament, make to the person who, at the beginning of the fourth day of June in that year, was the occupier of any farm in the United Kingdom which comprised one acre or more of land then under oats a payment (in this Act referred to as an “oats subsidy payment”) at the following rate, that is to say—

(a) if the condition specified in subsection (2) of this section is satisfied in relation to the farm in the case of that year, at the higher rate mentioned in section two of this Act; or

(b) if that condition is not so satisfied, at the lower rate mentioned in section two of this Act.

(2) The condition which must be satisfied in relation to a farm in order that an oats subsidy payment may be made in respect thereof in the case of any year at the higher rate is—

(a) that the farm did not at any time during the first eight months of that year comprise any land under wheat; or

(b) if it did, that the person who was the occupier of the farm at the beginning of the fourth day of June in that year has, by notice given to the appropriate Minister in such manner and within such period as may be prescribed by regulations made by the Ministers, elected to exclude the farm from the benefit of wheat deficiency payments in the case of that year.

(3) In this Part of this Act the expression “the standard price” means eight shillings:

Provided that the Ministers may, by order made with the approval of the Treasury, substitute for the price aforesaid such price as may be specified in the order, so however that an order made under this proviso shall be of no effect until it has been approved by a resolution passed by each House of Parliament.

Rate of oats
subsidy
payments.

2.—(1) In relation to the making of an oats subsidy payment in respect of a farm in the case of any year—

(a) the higher rate shall be fourteen times the difference between the United Kingdom price per hundredweight of home-grown oats harvested in that year and the standard price, or two pounds six shillings and eightpence, which—

ever is the less, for each acre of land comprised in the farm which was under oats at the beginning of the fourth day of June in that year; and

- (b) the lower rate shall be six times the said difference, or one pound, whichever is the less, for each acre of the said land;

subject in each case to the provisions of subsection (2) of this section.

- (2) If in the case of any year—

(a) the acreage qualifying for oats subsidy payments at the higher rate exceeds one million four hundred and seventy thousand acres; or

(b) the acreage qualifying for oats subsidy payments at the lower rate exceeds one million and thirty thousand acres;

the rate at which an oats subsidy payment may be made at the higher rate, or at the lower rate, as the case may be, in the case of that year shall be reduced by an amount bearing to the appropriate rate determined by the preceding subsection the same proportion as the excess bears to the acreage qualifying for oats subsidy payments at that rate :

Provided that no such reduction shall be made if the acreages qualifying respectively for oats subsidy payments at the higher rate and at the lower rate taken together do not exceed two million, five hundred thousand acres.

(3) In computing the amount of an oats subsidy payment which may be made in respect of a farm in the case of any year, if the total area of the land comprised therein which was under oats at the beginning of the fourth day of June in that year was not an exact number of acres, the odd fraction of an acre shall be disregarded, and, if the rate at which such a payment may be made as determined by the preceding provisions of this section is not an exact multiple of a penny, the odd fraction of a penny shall be disregarded.

3.—(1) Subject to the provisions of this section, for the purposes of any provision of this Act which relates to land being under oats at a particular time—

Provisions
as to mixed
crops.

- (a) land on which there was growing at that time a crop of oats intermixed with barley and not

PART I.
—cont.

intermixed with any other crop shall be treated as land which was under oats at that time;

- (b) land on which there was growing at that time a crop of oats intermixed with any other crop or crops (not being barley only) shall be treated as aforesaid in such cases as may be determined in accordance with regulations made by the Ministers; and
- (c) land on which there was growing at that time a crop of barley intermixed with any other crop or crops (not being or including oats) shall be treated as aforesaid in such cases as may be determined in accordance with regulations made by the Ministers.

(2) For the purpose of computing the amount of an oats subsidy payment which may be made in the case of any year in respect of a farm comprising land which is treated as having been under oats at the beginning of the fourth day of June in that year by virtue of paragraph (b) or (c) of the preceding subsection, the acreage of that land may, in accordance with regulations made by the Ministers, be disregarded or treated as reduced to such extent as may be determined in accordance with the regulations.

(3) For the purpose of computing the acreage qualifying, in the case of any year, for oats subsidy payments, whether at the higher rate or at the lower rate, the acreage of any land which is treated by virtue of subsection (1) of this section as having been under oats at the beginning of the fourth day of June in that year may, in accordance with regulations made by the Ministers, be treated as reduced to such extent as may be determined in accordance with the regulations.

Provisions
as to
negligent
cultivation.

4. If it appears to the appropriate Minister that the crop of oats, or the mixed crop, as the case may be, obtained in any year from land which was, or is to be treated for the purposes of this Act as having been, under oats on the fourth day of June in that year is unduly small or has been prejudicially affected either because of the unsuitability of the land for growing the crop, or by negligence in connection with the preparation of the land for the crop or with the sowing, tending or

harvesting of the crop, or that any of the land has been used in that year in a manner calculated to impair the fertility thereof, he may reduce to such extent as he may think fit the amount of, or may withhold, any oats subsidy payment which, apart from this provision, he would have made in the case of that year in respect of the farm comprising that land.

PART I.
—cont.

5.—(1) Subject to the provisions of this section, the appropriate Minister shall not be authorised to make any oats subsidy payment in the case of any year in respect of any farm unless an application for the payment has been made to the appropriate Minister, in such manner and within such period as the Ministers may by regulations prescribe, by the person who was the occupier of the farm at the beginning of the fourth day of June in that year.

Procedure
on applica-
tions for
payments
and
elections to
exclude
wheat
payments.

(2) In relation to any farm the appropriate Minister may, in any case which appears to him to be exceptional, and if he considers it desirable in the circumstances of the case so to do, extend any period within which, under the Ministers' regulations, an application in respect of the farm, or an election to exclude the farm from the benefit of wheat deficiency payments, must be made.

6. Where in any year there has occurred or occurs, at any time before the fourth day of June, a change in the occupation of a farm which, at the time of the change, comprised or comprises land under oats or land under wheat, and the outgoing occupier is, by virtue of any custom or agreement, entitled to harvest any of the oats or wheat, or to receive payment therefor, the appropriate Minister, upon application made to him by or on behalf of the outgoing occupier, may give directions for all or any of the following purposes, that is to say,—

Provisions
as to
changes in
occupation
of farms.

- (a) for determining the person or persons by whom any election to exclude the farm from the benefit of wheat deficiency payments in the case of that year, or any application for any oats subsidy payment which may be made in respect of the farm in the case of that year, must be made in order to be effective;
- (b) for requiring any such election to be approved by the appropriate Minister in order that it may be effective;

PART I.
—*cont.*

- (c) for securing, in a case in which the outgoing occupier has the right to harvest the oats or any part thereof, or to receive payment therefor, that the outgoing occupier will receive the whole or part of any such oats subsidy payment according as the appropriate Minister may determine;

and if and so far as, by virtue of any such directions as aforesaid, anything which under section one or five of this Act would otherwise fall to be done to or by the person who was the occupier of a farm at the beginning of the fourth day of June falls to be done to or by some other person, that section shall have effect as if any reference therein to the person who was the occupier of the farm at the beginning of the said day were or included, as the case may be, a reference to that other person, and subsection (3) of section eight of this Act shall have effect accordingly.

Effect of
election to
exclude
wheat pay-
ments.
22 & 23
Geo. 5, c. 24.

7.—(1) Where an election to exclude a farm from the benefit of wheat deficiency payments in the case of any year is duly made, no deficiency payments shall be payable under the Wheat Act, 1932, in respect of any wheat harvested in that year and grown on land which at any time during the first eight months of that year was both comprised in that farm and under wheat.

(2) The power conferred on the Wheat Commission by section five of the Wheat Act, 1932, to make byelaws for giving effect to the provisions of that Act shall include a power to make byelaws for giving effect to the provisions of the preceding subsection.

(3) The appropriate Minister shall, as soon as may be after the end of the period prescribed in relation to any year by regulations made by the Ministers, cause to be prepared, and to be sent to the Wheat Commission, a list specifying in relation to England, Scotland or Northern Ireland, as the case may be, the farms in respect of which such an election as aforesaid has been duly made in the case of that year, and the persons respectively who have made the elections.

Interpreta-
tion of
Part I.

8.—(1) Any reference in this Part of this Act to the United Kingdom price per hundredweight of home-grown oats harvested in any year shall be construed as a reference to such price as the Ministers may by order declare to

be the United Kingdom price per hundredweight of home-grown oats for the period of seven months beginning on the first day of September in that year, as ascertained in accordance with the provisions of the First Schedule to this Act.

(2) Any reference in this Part of this Act to the acreage qualifying, in the case of any year, for oats subsidy payments at a particular rate shall be construed, subject to the provisions of subsection (3) of section three of this Act, as a reference to such number of acres as the Ministers may by order declare to be the total number of acres in respect of which it has become lawful to make oats subsidy payments in the case of that year, or in respect of which it would become or would have become lawful to make such payments if the United Kingdom price per hundredweight of home-grown oats harvested in that year proved or had proved to fall short of the standard price by threepence or more.

(3) Any reference in this Part of this Act to the person who was the occupier of a farm at the beginning of the fourth day of June in any particular year shall be construed as including a reference to any person who, if any oats subsidy payment that might lawfully be made in respect of the farm in the case of that year were a debt which had at the beginning of the said day accrued due to the person who was then the occupier of the farm, would for the time being be entitled to claim that subsidy payment otherwise than by virtue of an assignment.

*Subsidy (including subsidy for barley) in case of the
year 1938.*

9.—(1) Part II of the Agriculture Act, 1937, shall have effect in relation to the making of a subsidy payment which may be made thereunder by reason of land having been under oats or under barley in the year nineteen hundred and thirty-eight (in this Part of this Act referred to as a “1938 subsidy payment”) subject to the modifications specified in the subsequent provisions of this section.

Subsidy payments in respect of oats and barley grown in 1938.
1 Edw. 8. &
1 Geo. 6.
c. 70.

(2) Notwithstanding anything in the Agriculture Act, 1937, relating to the rate of subsidy payments under

PART I.
—*cont.*

Part II thereof, the rate at which a 1938 subsidy payment may be made in the case of land comprised either—

- (a) in a farm which did not at any time during the first eight months of the year nineteen hundred and thirty-eight comprise any land under wheat; or
- (b) in a farm which did at any time during those months comprise land that was under wheat, but in respect of which an election under section seven of that Act in the case of that year has been duly made before the commencement of this Act, or is duly made under regulations in that behalf made under this section;

shall be thirty-one shillings and sixpence for each acre of land to which by virtue of that Act regard is to be had for the purpose of determining the amount of the payment.

(3) In the case of land comprised in a farm which did at any time during the months aforesaid comprise land under wheat and in respect of which no such election as aforesaid has been or is made as aforesaid—

- (a) subsection (1) of section seven of the Agriculture Act, 1937 (which provides that the appropriate Minister shall not be authorised to make any subsidy payments in respect of such land) shall not have effect; and
- (b) notwithstanding anything in that Act relating to the rate of subsidy payments under Part II thereof, the rate at which a 1938 subsidy payment may be made shall be thirteen shillings and sixpence for each acre of land to which by virtue of that Act regard is to be had for the purpose of determining the amount of the payment.

(4) The Ministers may make regulations for the purpose of enabling applications for 1938 subsidy payments, and elections under section seven of the Agriculture Act, 1937, in the case of the year nineteen hundred

and thirty-eight, to be made after the commencement of this Act notwithstanding anything in section seven or section nine of that Act or in the regulations made thereunder, of determining the cases and manner in which, the times at which, and the persons by whom, such applications and elections may be made, of regulating the manner in which 1938 subsidy payments or additional payments in respect thereof are to be made, and of securing the notification to the Wheat Commission of particulars with respect to such elections :

PART I.
—cont.

Provided that the regulations shall not authorise the making of such an election in respect of a farm in a case in which any person has, before such date (not being earlier than the date of the commencement of this Act) as may be prescribed by the regulations, duly made a claim for wheat deficiency payments in respect of wheat grown on land comprised in the farm and harvested in the year nineteen hundred and thirty-eight.

(5) Subsection (2) of section seven of the Agriculture Act, 1937 (which provides that no wheat deficiency payments shall be payable where a person elects in accordance with that section) shall have effect as if the reference therein to an election in accordance with that section included a reference to an election in accordance with regulations made under this section.

Repeal of Part II of the Agriculture Act, 1937.

10.—(1) No subsidy payment shall be made under Part II of the Agriculture Act, 1937, in respect of any land by reason of its having been under oats or under barley in the year nineteen hundred and thirty-nine or in any subsequent year.

Repeal of
1 Edw. 8. &
1 Geo. 6.
c. 70,
Part II.

(2) As from such date as the Ministers may by order appoint, Part II of the said Act (except section thirteen thereof), paragraph (b) of subsection (1) of section twenty-nine thereof, and paragraph (d) of section thirty-three thereof, shall be repealed, and the Ministers may appoint different dates for those enactments respectively or for different provisions thereof.

PART II.

BARLEY.

Power of
Ministers to
make barley
schemes.

11.—(1) The Ministers may, with the approval of the Treasury, make schemes (in this Act referred to as “barley schemes”) providing—

- (a) for the making of payments (in this Act referred to as “barley subsidy payments”) to growers of barley in respect of barley grown by them in the United Kingdom, and
- (b) for the promotion of sales of home-grown barley and for the development and stabilisation of the market therefor.

(2) For the purpose of barley schemes, there shall be a barley year, which shall begin with the first day of August in any year and end with the thirty-first day of July in the next following year; and every barley scheme shall have effect in relation to one or more barley years.

Provisions
relating to
barley
schemes.

12.—(1) A barley scheme may—

- (a) specify products normally derived wholly or partly from barley, or classes of such products, or both such products and such classes,
- (b) contain provisions for securing that persons who, in each barley year in relation to which the scheme has effect, engage in the manufacture of products so specified, or of products of a class so specified, shall use for the purposes of such manufacture not less than such minimum average proportion of home-grown barley as may be determined in pursuance of the scheme, and for calculating the quantity of such barley used by any such person for the said purpose by reference to the quantity of such barley which has been bought by him during the said year and which has not been used and will not be used otherwise than for that purpose, or by reference to any other criterion,
- (c) contain provisions for determining, in relation to each such barley year, the minimum average proportion aforesaid, and for determining

different minimum average proportions for different products or classes of products, and for the variation of any minimum average proportion which has been so determined in relation to any barley year, and

- (d) contain provisions for requiring that when home-grown barley is sold the barley shall be designated in a certificate (in this Part of this Act referred to as a "certificate of sale") either—

(i) as barley destined for an industrial purpose, or

(ii) as barley not destined for an industrial purpose,

and for requiring the inclusion in a certificate of sale of such further particulars relating to the barley as may be specified in the scheme, and

- (e) contain provisions for securing that barley so designated as not destined for an industrial purpose shall not be used for an industrial purpose.

For the purposes of this Act, barley shall be deemed to be used for an industrial purpose if it is used in the United Kingdom in the manufacture of any product which, at the time of the issue of a certificate of sale relating thereto, is specified in a barley scheme in pursuance of paragraph (a) of this subsection, or if it is used in the manufacture of a product of a class which at the said time was so specified.

(2) A barley scheme may provide, in the case of each year in relation to which the scheme has effect, either—

- (a) (in the case of a year in relation to which no such provision as is mentioned in paragraph (b) of this subsection is made by any barley scheme) for securing that the price, or, as the case may be, the average price, paid by any person for home-grown barley bought by him during that year, being barley in relation to which a

PART II.
—cont.

certificate of sale has been issued, and which has been or is to be used in the manufacture of products, or of products of a class, specified in pursuance of paragraph (a) of the last foregoing subsection, shall not be less than such minimum price as may be prescribed in the scheme, and for securing that, in calculating any such price or average price as aforesaid in relation to any person, account shall be taken, to such extent and in such manner as may be determined by the scheme, of substances derived from home-grown barley which that person has bought during the said year and which have been or are to be used by him in the manufacture of a product, or of a product of a class, so specified as aforesaid, or

- (b) for the making of contributions to the barley subsidy fund established in accordance with the provisions of the scheme by persons who are, during that year, engaged in the manufacture of such products, or of products of such classes, as may be specified in the scheme, and for the calculation of the total amount of the contributions to be so made by reference to an amount of home-grown barley to be determined in pursuance of the scheme.

A provision contained in a barley scheme in pursuance of this subsection may specify different prices or average prices, or require the payment of different contributions, as the case may be, in relation to different products or products of different classes, and may prescribe both a minimum price and a minimum average price in relation to any product or in relation to products of any class.

Establish-
ment and
distribution
of barley
subsidy
fund.

13.—(1) The provisions of this section shall have effect in relation to any barley year in the case of which a barley scheme makes such provision as is mentioned in paragraph (b) of subsection (2) of the last foregoing section.

(2) There shall be constituted, for each such year as aforesaid, a barley subsidy fund, which, subject to such directions as may be given by the Treasury in relation

thereto, shall be under the control and management of the Ministers.

PART II.
—cont.

(3) There shall be paid into the barley subsidy fund for each such year as aforesaid—

- (a) the contributions paid in respect of that year in pursuance of provisions made under paragraph (b) of subsection (2) of the last foregoing section,
- (b) such sums as may be paid out of moneys provided by Parliament in accordance with the provisions of this section, and
- (c) such sums as may be payable in respect of that year in accordance with any provisions for the making of payments by importers contained in the scheme in pursuance of this section.

(4) If nine-tenths of the amount of home-grown barley harvested in any such year as aforesaid exceeds the amount of the industrial quota of home-grown barley for that year, then, for each hundredweight of the excess, there may be paid out of moneys provided by Parliament into the barley subsidy fund for that year a sum not exceeding the sum, if any, by which the average price per hundredweight of feeding barley in that year is less than the standard price for feeding barley :

Provided that, if nine-tenths of the amount of home-grown barley harvested in any barley year is in excess of eighteen million hundredweights, the sum payable into the barley subsidy fund by virtue of this subsection as respects any hundredweight of barley shall bear to the sum determined in accordance with the foregoing provisions of this subsection the same proportion as the difference between the amount of the industrial quota of home-grown barley for that year and eighteen million hundredweights bears to the difference between the said industrial quota and nine-tenths of the amount of home-grown barley aforesaid.

(5) The barley scheme made for any such year as aforesaid may provide for the making of payments into the barley subsidy fund for that year by persons who import into the United Kingdom such products, or products of such classes, as may be specified in the

PART II.
—cont.

scheme (being products normally derived wholly or partly from barley or classes of such products) during such period as may be therein specified (being a period of not more than twelve months commencing in that year), and for the calculation of the amount of such payments by reference to the amount of the contributions to be paid in respect of that year in pursuance of provisions made under paragraph (b) of subsection (2) of the last foregoing section.

(6) Out of the barley subsidy fund for any such year as aforesaid, the Ministers may pay to persons who were, at the beginning of the fourth day of June in the year immediately preceding that year, the occupiers of farms in the United Kingdom comprising one acre or more of land then under barley not intermixed with any other crop, such sum by way of barley subsidy payment for each acre of that land as may be determined by or under the scheme.

(7) The Minister shall prepare, in such form and manner as the Treasury may determine, an account of the sums received into, and paid out of, the barley subsidy fund for each such year as aforesaid; and every account so prepared by the Minister shall be transmitted to the Comptroller and Auditor General, who shall examine and certify the account, and lay copies thereof, together with his report thereon, before Parliament.

Barley
subsidy
payments
otherwise
than out
of barley
subsidy
fund.

14.—(1) The provisions of this section shall have effect in relation to any barley year in the case of which a barley scheme makes such provision as is mentioned in paragraph (a) of subsection (2) of section twelve of this Act.

(2) If the average price per hundredweight of feeding barley in any such year is less than the standard price for feeding barley, the appropriate Minister may, out of moneys provided by Parliament, pay to persons who were, at the beginning of the fourth day of June in the year immediately preceding any such year as aforesaid, the occupiers of farms in the United Kingdom comprising one acre or more of land then under barley not intermixed with any other crop such sum by way of barley subsidy payment for each acre of that land as may be determined by or under the scheme :

Provided that the total amount to be so paid in respect of any acre of land shall in no case exceed two pounds thirteen shillings and fourpence.

(3) If nine-tenths of the amount of home-grown barley harvested in any such year as aforesaid is in excess of eighteen million hundredweights, the amount determined by or under a barley scheme as the amount of any barley subsidy payment which may be paid in respect of an acre of land by reason of its having been under barley on the fourth day of June in the year preceding that year, shall be reduced by that part thereof which bears to the whole thereof the same proportion as the excess bears to the difference between the amount of the industrial quota of home-grown barley for that year and the nine-tenths aforesaid.

(4) A barley scheme shall contain provisions for securing that where home-grown barley is sold during any such year as aforesaid and is designated in a certificate of sale relating thereto as barley destined for an industrial purpose, then, if, on the fourth day of June in the year immediately preceding that year, that barley was growing, not intermixed with any other crop, on land then comprised in a farm in the United Kingdom, the area of land comprised in that farm and then under barley not intermixed with any other crop shall be deemed for the purposes of this section to be reduced to such extent as may be determined in pursuance of the scheme.

15.—(1) A barley scheme may contain provisions—

Further
provisions
relating to
barley
schemes.

(a) for securing that certificates of sale shall be issued only in proper cases and that the particulars stated in such certificates shall be truly and accurately stated, and, for that purpose, for securing that particular functions relating to the issue of such certificates shall be exercisable only by persons duly authorised in that behalf under the scheme,

(b) for the registration of persons who engage in the manufacture of such products normally derived wholly or partly from barley as may be specified in the scheme, and for securing that no person shall engage in the manufacture of a product so specified unless he is so registered,

PART II.
—cont.

- (c) for the charging of such reasonable fee, not exceeding five shillings, as may be determined by the scheme, upon an application for such registration as aforesaid,
 - (d) for requiring growers of barley in the United Kingdom, persons who carry on a business which includes the buying of home-grown barley, and persons who engage in the manufacture of products normally derived wholly or partly from barley, to keep, and to produce for inspection by persons authorised for that purpose in pursuance of the scheme, such records and accounts, and to furnish such information and documents, as may be specified in the scheme,
 - (e) for empowering persons authorised for that purpose by or under the scheme to enter any premises which they have reasonable cause to believe are used for the purpose of carrying on any activity affected by the scheme,
 - (f) for making exemptions from all or any of the provisions of the scheme in such cases, and subject to such conditions, as may be determined by or under the scheme.
- (2) A barley scheme may contain provisions—
- (a) for securing that no barley subsidy payment shall be made unless application therefor is made at the time and in the manner for which provision is made by the scheme,
 - (b) for enabling a barley subsidy payment in respect of land which was under barley at the beginning of the fourth day of June in any particular year to be made to any person who, if the subsidy payment had been a debt which, at the beginning of the said day, accrued due to the person who was then the occupier of a farm comprising that land, would for the time being be entitled to claim that subsidy payment otherwise than by virtue of an assignment,
 - (c) for securing that, where in any year there occurs, at any time before the fourth day

of June, a change in the occupation of a farm which, at the time of the change, comprises land under barley not intermixed with any other crop, and the outgoing occupier is, by virtue of any custom or agreement, entitled to harvest any of that barley or to receive payment therefor, the appropriate Minister may give directions for securing that the outgoing occupier will receive the whole or any part of any barley subsidy payment paid in respect of land comprised in that farm by reason of its having been under barley on the day aforesaid, and

(d) for the reduction or withholding of any subsidy payment which would have been made in respect of any land in any case in which it appears to the appropriate Minister—

(i) that the crop of barley obtained from that land is unduly small, or has been prejudicially affected either because of the unsuitability of the land for growing such a crop or by negligence in connection with the preparation of the land for the crop or with the sowing, tending or harvesting of the crop, or

(ii) that any of the land has been used in that year in a manner calculated to impair the fertility thereof.

(3) A barley scheme which makes such provision as is mentioned in paragraph (b) of subsection (2) of section twelve of this Act may contain provisions for the making out of the barley subsidy fund of repayments of contributions paid in pursuance of the scheme and of payments made by importers in pursuance thereof, or for the making of allowances in respect of such contributions and payments in cases in which products specified in the scheme, or products of classes specified therein, are exported, or re-exported, or rendered un-serviceable, or in any other circumstances specified in the scheme.

(4) The Ministers may make regulations for giving effect to barley schemes.

PART II.
—cont.
Constitution
of Barley
Advisory
Committee.

16.—(1) The Ministers may constitute a Barley Advisory Committee, and appoint the members thereof.

(2) The Barley Advisory Committee shall consist of—

(a) representatives, in such numbers as may be determined by the Ministers, of growers of barley, persons engaged in the manufacture of products normally derived wholly or partly from barley, and persons carrying on businesses which include the buying of barley,

(b) a chairman who is not engaged in any occupation connected with the growing of barley, or with any such manufacture or business as aforesaid.

(3) It shall be the function of the Barley Advisory Committee to advise the Ministers upon matters connected with barley schemes, and upon the effect of barley schemes upon the trades and industries affected thereby.

(4) A sub-committee appointed by the Barley Advisory Committee may, if the Committee so directs, consist partly of persons who are not members of the Committee.

(5) The Ministers may defray expenses incurred by the Barley Advisory Committee in the performance of its functions.

Legal pro-
ceedings in
connection
with barley
schemes.

17.—(1) A contribution payable by virtue of a barley scheme shall be recoverable as a civil debt.

(2) A barley scheme may declare, as respects any provision of the scheme other than a provision for the payment of contributions, that a contravention or failure to comply with that provision is an offence.

(3) Any person who wilfully contravenes or fails to comply with any provision in relation to which such a declaration is in force shall be guilty of an offence under this section, and shall be liable on summary conviction thereof—

(a) in the case of any provision made in pursuance of paragraph (b) of subsection (1), or paragraph (a) of subsection (2), of section twelve of this Act,

to imprisonment for a term not exceeding three months or to a fine not exceeding two hundred and fifty pounds, or to both such imprisonment and such fine, and

- (b) in any other case, to imprisonment for a term not exceeding one month or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine.

18.—(1) No barley scheme shall have effect unless it has been approved by a resolution passed by each House of Parliament.

Supple-
mentary
provisions
relating to
barley
schemes.

(2) Any such scheme may be varied by a supplementary barley scheme which has been so approved as aforesaid.

(3) At any time before the commencement of a barley year in relation to which such a scheme is expressed to take effect, the scheme may be revoked in relation to that year by an order made by the Ministers which has been so approved as aforesaid.

19.—(1) For the purposes of this Part of this Act, the standard price for feeding barley is eight shillings per hundredweight :

Interpre-
tation of
Part II.

Provided that the Ministers may, with the consent of the Treasury, make an order varying the said standard price in relation to any one or more barley years, so, however, that such an order shall be of no effect until it has been approved by a resolution passed by each House of Parliament.

(2) For the purposes of this Part of this Act, the amount of home-grown barley harvested in any barley year shall be deemed to be such amount as the Ministers may by order declare to be the amount estimated by them to be the amount of such barley harvested in that year.

(3) For the purposes of this Part of this Act, the average price per hundredweight of feeding barley in any barley year shall be deemed to be such price as the Ministers may by order declare to be the price estimated by them to be the average price of home-grown barley sold during that year which has been or will be used for the purpose of feeding livestock.

PART II.
—cont.

(4) In this Part of this Act the expression “the industrial quota of home-grown barley” means—

(a) in relation to any barley year in the case of which a barley scheme makes such provision as is mentioned in paragraph (a) of subsection (2) of section twelve of this Act, such amount of home-grown barley as the Ministers may by order declare to be the total amount of home-grown barley estimated by them to have been sold during that year by the growers thereof, being barley which has been designated in a certificate of sale relating thereto as barley destined for an industrial purpose, and

(b) in relation to a barley year in the case of which a barley scheme makes such provision as is mentioned in paragraph (b) of the subsection aforesaid, such amount of home-grown barley as the Ministers may by order declare to be the amount by reference to which the total amount of contributions to be made in that year in pursuance of that paragraph is determined.

(5) For the purposes of this Part of this Act, a person shall be deemed to be a grower of barley if he is, at any time during the period between the sowing and the harvesting of barley, the occupier of the land upon which that barley is growing.

(6) In this Part of this Act the expression “manufacture” means “manufacture in the United Kingdom”.

(7) Production in a particular area and production by a particular person or class of persons shall be deemed to be characteristics constituting a class of products for the purposes of this Part of this Act.

Special pro-
vision for
barley
year
beginning
in 1939.

20. In relation to the barley year beginning with the first day of August nineteen hundred and thirty-nine, the foregoing provisions of this Part of this Act shall have effect subject to the following modifications—

(a) any barley scheme relating to that year shall make such provision as is mentioned in paragraph (b) of subsection (2) of section twelve of this Act, so, however, that the amount of

the contributions to be made in pursuance of the said paragraph may be calculated in any manner determined by the scheme, and

PART II.
—cont

- (b) the sums to be paid out of moneys provided by Parliament into any barley subsidy fund for that year shall be of such amount and shall be paid at such times as the Ministers may, with the approval of the Treasury, determine.

PART III.

FAT SHEEP.

21.—(1) Subject to the provisions of this Part of this Act and of regulations made thereunder, the Ministers may, in accordance with a scheme made by the Livestock Commission and approved by the Ministers as hereinafter provided, make, out of moneys provided by Parliament, payments in respect of fat sheep sold or slaughtered in the United Kingdom, being sheep which have been certified in accordance with the scheme to be fat sheep bred in the United Kingdom in respect of which certificates may by virtue of the subsequent provisions of this Part of this Act be issued, in any case in which the average market price for the month in which the sheep was examined for certification as aforesaid was less than the standard price for that month by one farthing or more.

Fat sheep
subsidy
payments.

(2) Any such payment as aforesaid (in this Act referred to as a "fat sheep subsidy payment") shall be made to the person appearing by a certificate issued in accordance with the scheme to be the person by whom or on whose behalf the sheep was presented for examination with a view to its being certified as aforesaid, and shall be made only in accordance with the provisions of the scheme:

Provided that, where such a payment would, if it had been a debt which accrued due to that person at the time when the sheep was so presented, be properly payable to some other person otherwise than by virtue of an assignment, the payment may be made to that other person.

PART III.
—cont.

(3) The amount which may be paid by way of fat sheep subsidy payment in respect of any sheep shall be an amount, for each pound of the standard weight of fat sheep of the description to which the sheep belongs, equal to the amount by which the average market price for the month in which the sheep was examined for certification as aforesaid was less than the standard price for that month.

(4) For the purposes of this Part of this Act, the average market price for any month, the standard price for any month, and the standard weight of sheep of any description, shall be ascertained in accordance with the provisions of Parts I, II and III respectively of the Second Schedule to this Act :

Provided that the provisions of paragraphs 6 to 10 of the said Schedule may be varied by an order made by the Ministers after consultation with the Livestock Commission, and with the approval of the Treasury, so however that an order made under this proviso shall be of no effect until it has been approved by a resolution passed by each House of Parliament.

(5) In this Part of this Act, except where otherwise expressly provided, the expression "sheep" includes lambs.

Schemes
for regu-
lating fat
sheep
subsidy
payments.

22.—(1) It shall be the duty of the Livestock Commission to make and to submit to the Ministers a scheme for giving effect to the purposes of this Part of this Act, and the Ministers may by order approve a scheme submitted to them with or without modifications, and it shall be the duty of the Commission to carry into effect a scheme so approved.

(2) A scheme shall come into force on such date, being the first day of a month as the Ministers may by order appoint, and fat sheep subsidy payments to be made in accordance with the scheme shall be made only in the case of sheep examined for certification in accordance therewith whilst the scheme is in force.

(3) A scheme may provide for the issue (subject to the provisions of any regulations made under this Part of this Act) of such certificates as are required for the purposes of this Part of this Act, and for determining the places at which and the persons by whom

sheep may be certified for the said purposes, and generally for securing that fat sheep subsidy payments are properly made.

PART III.
—cont.

(4) A scheme may provide that the expenses of the examination of sheep for certification as aforesaid and of the certification thereof shall be defrayed (either by the payment of such reasonable fees as may be determined by the scheme or by the Ministers in accordance with the provisions thereof, or by payments of any other kind) either by the persons by whom or on whose behalf sheep are presented for examination or by the Commission (either with or without provision for recoupment in whole or in part out of fat sheep subsidy payments), or partly in one of those ways and partly in another.

(5) A scheme may provide for the suspension during such times as the Ministers may direct of facilities for certification.

23. The Ministers may, after consultation with the Livestock Commission, make regulations—

Regulations
as to fat
sheep
subsidy
payments.

- (a) defining (by reference to sexual characteristics, age or any other circumstances whatsoever) the descriptions of sheep that may be certified as being fat sheep;
- (b) directing, with respect to fat sheep generally or to fat sheep of any particular description, that a sheep presented for examination shall not be certified for the purposes of this Part of this Act if its dressed carcase weight, as estimated by the person whose function it is to act in relation to the examination thereof, is less than such weight as may be specified in the regulations in relation to the description of sheep to which the sheep presented belongs;
- (c) defining for the purposes of this Part of this Act the meaning of the expression “dressed carcase weight”.

24.—(1) With a view to ensuring that fat sheep subsidy payments are properly made, the Ministers may by order provide (subject to such exceptions, if any, as may be specified in the order) for the marking of sheep imported or brought into the United Kingdom.

Provisions
as to
imported
sheep.

PART III.
—*cont.*

(2) If any person—

- (a) contravenes or fails to comply with an order under the preceding subsection; or
- (b) with intent to deceive, alters or defaces any mark placed on a sheep for the purposes of such an order;

he shall be guilty of an offence and liable, on summary conviction, to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

(3) With a view to ensuring that fat sheep subsidy payments are properly made, the Ministers may by order determine the times and places at which sheep may be imported or brought into the United Kingdom from Eire or the Isle of Man, and make provision as to the routes to be followed by sheep so imported or brought and as to their detention for inspection, and an order under this subsection may contain such provisions as appear to the Ministers necessary for securing the due operation and enforcement of the order, including provisions as to forfeiture of sheep.

Sums retained out of the proceeds of any sale of sheep forfeited under any such provisions as aforesaid shall be paid into the Exchequer.

Variation of
schemes and
laying of
orders before
Parliament.

25.—(1) The power conferred by this Part of this Act to make and submit, or to approve, a scheme shall be construed as including a power, exercisable in the like manner to make and submit, or to approve, as the case may be, a scheme varying or revoking a scheme already approved, and every order approving a scheme under this Part of this Act shall set forth the scheme in a Schedule to the order.

(2) All orders made by virtue of this Part of this Act shall, as soon as may be after they are made, be laid before Parliament, and if either House of Parliament, within the period of forty days beginning with the date on which any such order is laid before it, resolves that the order be annulled, the order shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of a new order :

Provided that this subsection shall not have effect in the case of an order made under the proviso to subsection (4) of section twenty-one of this Act, subsection (2) of section twenty-two thereof or sub-paragraph (1) of paragraph 5 of the Second Schedule thereto.

PART III.
—cont.

(3) In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

26.—(1) The Ministers shall pay to the Livestock Commission out of moneys provided by Parliament such sums as may be requisite for defraying any expenses which are lawfully incurred by the Commission in connection with the execution of this Part of this Act.

Expenses of
execution of
Part III.

(2) Any increase attributable to the execution of this Part of this Act in the sums payable out of moneys provided by Parliament by virtue of subsection (3) of section one of the Livestock Industry Act, 1937, shall be defrayed out of moneys so provided.

1 Edw. 8. &
1 Geo. 6.
c. 50.

(3) In section thirty-eight of the Livestock Industry Act, 1937—

(a) subsection (3) (which relates to the payment of sums received by the Commission into the Cattle Fund) shall not apply to any sums received by the Commission by virtue of, or in exercise of their functions under, this Part of this Act;

(b) in subsection (4) (which provides for the payment out of that Fund of all expenses lawfully incurred by the Commission), the reference to subsidy payments shall not be construed as including fat sheep subsidy payments, and that subsection shall not apply to any such expenses as are mentioned in subsection (1) of this section; and

(c) subsection (5) (which provides for the payment out of that Fund to the Exchequer of the United Kingdom of certain amounts in respect

PART III.
—cont.

of the remuneration and allowances therein mentioned) shall not have effect in so far as the said remuneration and allowances are in the opinion of the Minister payable in respect of the execution of this Part of this Act.

PART IV.

GRANTS FOR PLOUGHING UP GRASSLAND IN THE
YEAR 1939.Ploughing
grants.

27.—(1) The appropriate Minister may, out of moneys provided by Parliament, make grants, subject to and in accordance with the provisions of this Part of this Act, in respect of the ploughing up, in the year nineteen hundred and thirty-nine, of land in the United Kingdom then under grass and the bringing of the land into a state of cleanliness and fertility.

(2) A grant in respect of the matters aforesaid (in this Act referred to as a “ploughing grant”) may be made only in respect of land as to which, on an application being duly made for the grant, the applicant shows to the satisfaction of the appropriate Minister—

- (a) that the land has been ploughed up during a period beginning not earlier than the fourth day of May, and ending not later than the thirty-first day of October, in the year nineteen hundred and thirty-nine;
- (b) that at the time when the ploughing up was begun the land had been under grass for a period of seven years or more;
- (c) that after the ploughing up thereof the land has been, or is being or will be, dealt with in such manner, whether by fallowing, direct re-seeding, sowing such a catch crop as is hereinafter mentioned, or otherwise howsoever, as is in the opinion of the appropriate Minister calculated to bring the land into a state of cleanliness and fertility;
- (d) that the land was capable of being substantially improved, in respect of fitness for re-seeding or re-introduction into a suitable rotation, by being ploughed up and dealt with as aforesaid,

and would be capable of producing satisfactory arable crops for harvesting in the year nineteen hundred and forty; and

PART IV.
—cont.

- (e) that such other conditions as may be prescribed (either generally or in relation to any class of land) by regulations made by the Ministers are satisfied in relation to the land.

(3) Land on which a catch crop has been sown after the ploughing up thereof shall not be treated as having been dealt with as mentioned in paragraph (c) of the last preceding subsection unless the crop was sown with the approval of the appropriate Minister or was of a kind approved generally by him for sowing on land of the class to which the land in question belongs.

28.—(1) Subject to the provisions of this section, the rate at which a ploughing grant may be made shall be one pound for each half acre of such land as is mentioned in subsection (2) of the last preceding section.

Rate, &c.,
of ploughing
grants.

(2) Such a grant shall be made only in respect of land comprised in a farm in which there are at least two acres of such land as aforesaid.

(3) In computing the amount of such a grant, if the total area of such land as aforesaid comprised in a farm is not an exact number of half acres, the odd fraction of a half acre shall be disregarded.

29.—(1) A ploughing grant to be made in respect of any land shall be made to the person at whose expense the land has been ploughed up, and has been or is being or is to be dealt with as aforesaid, or, if one or more of those operations has been or is being or is to be carried out at the expense of one person and one or more of them at the expense of another person, shall be divided amongst them in such proportions as the appropriate Minister may direct :

Persons to
whom
ploughing
grants may
be made
and applica-
tions
therefor.

Provided that, where a payment in respect of such a grant would, if it had been a debt which had accrued due at the time when any such operation as aforesaid was carried out to the person at whose expense it were carried out, be properly payable to some other person, otherwise than by virtue of an assignment, the payment may be made to that other person.

PART IV.
—cont.

(2) The determination of the appropriate Minister as to any question arising under the preceding subsection shall be conclusive for the purposes of this Part of this Act.

(3) The appropriate Minister shall not be authorised to make any such grant unless an application therefor has been made to him by the person to whom the grant may be made or by a person to whom a part thereof may be paid on a division thereof, being an application in such form, and containing particulars with respect to such matters and verified in such manner, as the appropriate Minister may require.

Adjustment
as to other
payments
where
ploughing
grant made.

30.—(1) Land in respect of which a ploughing grant has been made, or has been or is to be applied for, and which was under oats or under barley at the beginning of the fourth day of June in the year nineteen hundred and thirty-nine, shall be treated for the purposes of Part I and Part II of this Act as if it had not then been under oats or under barley as the case may be.

13 & 14
Geo. 5. c. 9.

(2) In assessing the amount of any compensation payable, whether under the Agricultural Holdings Act, 1923, or the Agricultural Holdings (Scotland) Acts, 1923 and 1931, or under custom or agreement, to a tenant of agricultural land, being land in respect of which a payment in respect of a ploughing grant has been made to the tenant, or has been or is to be applied for by him if it is shown to the satisfaction of the person assessing the compensation that the improvement or cultivations in respect of which the compensation is claimed was or were wholly or in part the result of or incidental to the operations by virtue of which the land became eligible for the grant, the grant shall be taken into account as if it had been a benefit allowed to the tenant in consideration of his executing the improvement or cultivations, and the compensation shall be reduced to such extent as that person considers appropriate.

PART V.

MISCELLANEOUS AND GENERAL.

Miscellaneous.

Reserve of
agricultural
machinery.

31.—(1) In accordance with arrangements approved by the Treasury, the Minister may enter into agreements for the acquisition and storage of, and acquire and store,

stocks of agricultural tractors and other agricultural machinery, and for the purpose of such storage do all such things (including the execution of works and the erection of buildings) as may appear to him necessary for the storage, preservation, and transport of such stocks.

(2) The Minister may from time to time vary the stocks of tractors and machinery held by him under this section, but, except so far as may be expedient for preventing deterioration or for securing that stocks are maintained by the Minister of such machinery and of such quantities only as the Minister considers to be for the time being required for the purpose of giving effect to the objects of this section, the stocks acquired by the Minister shall be held by him until the disposal thereof is authorised by or under an Act of Parliament passed after the commencement of this Act.

(3) Any sums received by the Minister representing the net proceeds of any disposal of stocks effected for preventing deterioration or for securing the matters aforesaid shall be paid into the Exchequer.

(4) The expenses incurred by the Minister under this section shall be defrayed out of moneys provided by Parliament.

32. The Minister may, with the approval of the Treasury, make, out of moneys provided by Parliament, to the company formed for the purposes of Part I of the Agricultural Credits Act, 1928, in the year beginning on the first day of April nineteen hundred and thirty-nine, and in each or any of the nineteen next succeeding years, a payment not exceeding sixty thousand pounds either by way of grant or by way of loan and on such terms as may be agreed between the Minister and the said company with the approval of the Treasury.

Payments
to Agri-
cultural
Mortgage
Corporation.
18 & 19
Geo. 5. c. 43.

General.

33. Any expenses which are incurred for the purposes of this Act by the Minister, a Secretary of State, or the Department of Agriculture for Scotland, and which are not hereinbefore directed to be defrayed out of moneys provided by Parliament, shall be defrayed out of moneys so provided.

Expenses of
Ministers.

PART V.

—cont.

Power to
obtain in-
formation.

34.—(1) For the purpose of obtaining information required for the purposes of this Act, the appropriate Minister may authorise in writing any person to inspect any agricultural land in respect of which an oats subsidy payment, a barley subsidy payment or a ploughing grant, has been applied for or made.

(2) The appropriate Minister may authorise in writing any person to inspect any agricultural land in respect of which a return has been made, or required to be made, under the Agricultural Returns Act, 1925.

15 & 16
Geo. 5. c. 39.

(3) Any person authorised under this section may, for the purposes of any inspection to be carried out by him, at all reasonable times, on production of his authority on demand, enter on any land to which the authority relates.

(4) Notwithstanding anything in the Agricultural Returns Act, 1925, any returns made under that Act may be used by the Minister and by the Department of Agriculture for Scotland for the purposes of this Act, and the annual agricultural statistics collected by the Ministry of Agriculture for Northern Ireland may be used for the purposes of this Act, and any such returns or statistics may be published or disclosed to any person exercising functions conferred on him by or under this Act for the purpose of enabling him to exercise such functions, or to any court before which any proceedings under or in connection with this Act are taken.

Penalties.

35.—(1) Any person who knowingly or recklessly makes any false statement for the purpose of obtaining for himself or any other person any subsidy payment, grant, or other sum payable under this Act, shall, unless in the case of an indictable offence he is indicted for the offence, be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such imprisonment and fine.

(2) Any person who obstructs or impedes any person duly authorised under this Act to make any inspection in the exercise of any functions which he is authorised by or under this Act to perform, or who, when duly required by or under this Act so to do, fails or refuses to furnish any information or to produce any accounts, books or

other documents in his possession or power, shall be liable on summary conviction in the case of a first offence to a fine not exceeding twenty pounds and, in the case of a second or subsequent offence punishable under this subsection, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding one month, or to both such imprisonment and such fine.

PART V.
—cont.

36. Where an offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any reckless neglect of duty on the part of, any director, manager, secretary or other officer of the body corporate, he, as well as the body corporate, shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Offences by
corpora-
tions.

37.—(1) Any power to make an order conferred by this Act shall be construed as including a power, exercisable and having effect in the like manner and subject to the like conditions (if any) as to consultation and approval, and laying before, and resolutions of, the Houses of Parliament, to vary or revoke the order by a subsequent order :

Provisions
as to orders,
regulations
and
schemes.

Provided that this subsection shall not apply to an order made under section ten of this Act appointing a date for the taking effect of a repeal therein mentioned.

(2) Any order or scheme made under this Act may make provision for such matters as are incidental or supplementary to any of the matters for which provision is made by the order or scheme by virtue of the preceding provisions of this Act.

(3) All regulations made by virtue of this Act shall, as soon as may be after they are made, be laid before Parliament, and if either House of Parliament, within the period of forty days beginning with the date on which any such regulations are laid before it resolves that the regulations be annulled, the regulations shall thereupon become void, without prejudice however to the validity of anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

PART V.
—*cont.*
56 & 57 Vict.
c. 66.

(4) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, regulations made under this Act, or rules or regulations contained in an order or scheme made thereunder, shall not be deemed to be statutory rules to which that section applies.

Interpreta-
tion.

38.—(1) In this Act, unless the context otherwise requires, the following expressions have the meaning hereby respectively assigned to them, that is to say—

“acre” means statute acre, and “acreage” shall be construed accordingly;

“agricultural land” means any land used as arable, meadow or pasture ground, or for the purpose of poultry farming, market gardens, nursery grounds, orchards or allotments, including allotment gardens within the meaning of the Allotments Act, 1922;

12 & 13
Geo. 5. c. 51.

“home-grown” means grown in the United Kingdom;

“the appropriate Minister” means, in relation to England or functions exercisable with respect thereto and in relation to Northern Ireland or functions exercisable in respect thereto, the Minister; and, in relation to Scotland or functions exercisable in respect thereto, any reference in this Act to the appropriate Minister shall be construed as a reference to the Department of Agriculture for Scotland;

“the Minister” means the Minister of Agriculture and Fisheries;

“the Ministers” means the Minister and the Secretaries of State respectively concerned with agriculture in Scotland and in Northern Ireland;

“ploughing” includes any means of breaking-up land which in the opinion of the appropriate Minister has substantially the same effect as ploughing;

“wheat deficiency payments” means deficiency payments as defined in the Wheat Act, 1932, and includes payments in advance on account thereof.

(2) For the purposes of this Act, land farmed as a single unit shall be taken to be a separate farm.

PART V.
—cont.

If, in connection with the administration of this Act, any question arises as to whether or not any land was comprised in any particular farm at any particular time, that question shall be determined by the appropriate Minister, and his determination shall be conclusive for the purposes of this Act.

(3) This Act shall, in the application thereof to Northern Ireland, have effect as if for any reference therein to the fourth day of June there were substituted a reference to the first day of June.

(4) In this Act references to Part I thereof shall be construed as including references to the First Schedule thereto, and references to Part III thereof shall be construed as including references to the Second Schedule thereto.

39. In the application of this Act to Scotland—

Application
to Scotland.

(a) for any reference to the Allotments Act, 1922, there shall be substituted a reference to the Allotments (Scotland) Act, 1922;

12 & 13
Geo. 5. c. 52.

(b) for section six of this Act the following section shall be substituted—

“ 6. Where in any year there has occurred or occurs, at any time before the fourth day of June, a change in the occupation of a farm, which at the time of the change comprised or comprises land under oats or land under wheat, and the occupier is, by virtue of any custom or agreement, entitled to harvest any of the oats or wheat or to receive payment therefor, the provisions of Part I of this Act shall, in relation to the said farm, have effect as if for any reference to the person who, at the beginning of the fourth day of June in the said year, was the occupier of the farm, there were substituted a reference to the outgoing occupier ”;

(c) paragraph (c) of subsection (2) of section fifteen of this Act shall not apply and where in any year there occurs, at any time before the fourth day of June, a change in the

PART V.
—cont.

occupation of a farm which at the time of the change comprises land under barley not intermixed with any other crop and the outgoing occupier is, by virtue of any custom or agreement entitled to harvest any of the barley or to receive payment therefor, the outgoing occupier shall be entitled to receive the whole or any part of any barley subsidy payment paid in respect of land comprised in that farm by reason of its having been under barley on the day aforesaid.

Short title. **40.** This Act may be cited as the Agricultural Development Act, 1939.

SCHEDULES.

FIRST SCHEDULE.

Sections 8,
38.

PROVISIONS FOR THE ASCERTAINMENT OF THE UNITED KINGDOM PRICE OF HOME-GROWN OATS.

1. In relation to each of the three countries, the appropriate Minister shall, as soon as may be after the expiration of the period of seven months beginning on the first day of September in each year, cause to be computed, in accordance with regulations made by the Ministers, the average price per hundredweight at which home-grown oats were sold in that country during the said period.

2. In relation to each of the three countries, the appropriate Minister shall then cause to be ascertained the acreage in that country qualifying in the case of that year for oats subsidy payments at the higher rate.

3. The Ministers shall then cause the United Kingdom price per hundredweight of home-grown oats for the said period of seven months to be computed as follows:—

(a) the average price computed in relation to each of the three countries under paragraph 1 of this Schedule shall be multiplied by the number of acres ascertained under paragraph 2 of this Schedule in relation to that country, and the resulting products shall be added together;

(b) the resulting total shall be divided by the sum of the three numbers ascertained under the said paragraph 2.

If the amount arrived at under the preceding provisions of this paragraph is not an exact multiple of a penny, the odd fraction of a penny shall be disregarded.

4. In this Schedule the expression “the three countries” means England, Scotland and Northern Ireland.

Sections 21,
25, 38.

SECOND SCHEDULE.

PROVISIONS AS TO AMOUNT OF FAT SHEEP SUBSIDY
PAYMENTS.

PART I.

AVERAGE MARKET PRICE.

1. As soon as may be after the end of each month in a fat sheep subsidy year, the Ministers shall cause to be computed, in accordance with regulations made by them after consultation with the Livestock Commission and with the approval of the Treasury, the price (expressed as a price per pound of dressed carcase weight) which in the opinion of the Ministers fairly represents the average of the prices at which sales of fat sheep (excluding lambs) generally, or if it is provided by regulations so made that regard shall be had for the purposes of this paragraph to particular descriptions of such fat sheep, sales of such fat sheep of those descriptions, were effected during that month at such markets as may be specified in the regulations.

2. As soon as may be after they have made the requisite computation in relation to any month under the last preceding paragraph, the Ministers shall cause the price so computed to be certified and shall cause notice of the amount certified to be published in such manner as they think best for bringing it to the notice of all persons concerned.

3. The references in section twenty-one of this Act to the average market price for any month shall be construed as references to the price certified in relation to that month under the last preceding paragraph.

4. Any reference in the subsequent provisions of this Schedule to the average market price for a fat sheep subsidy year shall be construed as a reference to the amount (calculated to the nearest eighth of a penny) which is obtained by dividing the sum of the average market prices for the several months in that year by twelve.

PART II.

STANDARD PRICE.

Standard price for month.

5.—(1) There shall be a standard price for each fat sheep subsidy year, being such price as may be declared, by an order made by the Ministers, to be the price obtained by the application of the provisions of paragraphs 6 to 10 of this Schedule to that year.

(2) The Ministers shall, after consultation with the Live-stock Commission and with the approval of the Treasury, determine the manner in which, having regard to the normal course of seasonal variation in prices, the standard price for the several months in each fat sheep subsidy year ought to be related to the standard price for that year, and by order assign to each month of the year a percentage fixed in such manner as to give effect to their determination and to yield an average percentage for the year of one hundred per cent.

(3) The references in section twenty-one of this Act to the standard price for any month shall be construed as references to an amount equal to the percentage assigned to that month under this paragraph of the standard price for the fat sheep subsidy year in which that month falls:

Provided that that amount shall be adjusted to the nearest eighth of a penny.

Basic standard price.

6. Subject to the subsequent provisions of this Schedule, the standard price for any fat sheep subsidy year shall be tenpence per pound of dressed carcase weight (hereinafter referred to as the "basic standard price").

Abatement of basic standard price (sheep population factor).

7. If for any fat sheep subsidy year the United Kingdom sheep population exceeds twenty-seven millions, the standard price for that year shall be the basic standard price reduced by one-eighth of a penny for each complete quarter of a million by which such population exceeds twenty-seven millions and by a further one-eighth of a penny for each complete quarter of a million by which it exceeds twenty-eight millions.

Abatement of basic standard price (excess price factor).

8. Subject as hereinafter provided, if in the case of any two successive fat sheep subsidy years the standard price for those years respectively exceeds the average market price for those years respectively, paragraph 7 of this Schedule shall have effect in relation to subsequent fat sheep subsidy years as if for the reference therein to twenty-seven millions there had been substituted a reference to twenty-six millions.

9. If in the case of any two successive fat sheep subsidy years, being years in the case of which paragraph 7 of this Schedule has had effect with the substitution for the reference therein to

2ND SCH.
—cont.

twenty-seven millions of a reference to twenty-six millions, the standard price for those years respectively exceeds the average market price for those years respectively, paragraph 7 of this Schedule shall have effect, subject as hereinafter provided, in relation to subsequent fat sheep subsidy years as if for the reference therein to twenty-seven millions there had been substituted a reference to twenty-five millions.

10. If in the case of any two successive fat sheep subsidy years, being years in the case of which paragraph 7 of this Schedule has had effect with the substitution for the reference therein to twenty-seven millions of a reference either—

(a) to twenty-six millions, or

(b) to twenty-five millions,

the standard price of those years respectively is equal to or less than the average market price for those years respectively, paragraph 7 of this Schedule shall have effect in relation to subsequent fat sheep subsidy years (without prejudice to the operation in relation to any such years of paragraphs 8 and 9 of this Schedule)—

(i) if both or either of those two years fell within the case mentioned in head (a) of this paragraph, without modification, or

(ii) if both of those two years fell within the case mentioned in head (b) of this paragraph, as if for the reference in the said paragraph 7 to twenty-seven millions there had been substituted a reference to twenty-six millions.

PART III.

STANDARD WEIGHT.

11. For the purposes of the determination of the standard weight of fat sheep, such sheep shall be classified in such manner, by reference to breed or to any other characteristic, as may be specified in an order made by the Ministers after consultation with the Livestock Commission.

12. In relation to each description of fat sheep for the time being specified in an order so made, the Ministers shall, by order made after consultation with the Commission and with the approval of the Treasury, specify a figure, in pounds weight, as being the standard dressed carcase weight of fat sheep of that description, and may specify different figures in respect of different seasons in the year as defined in the order.

13. The reference in section twenty-one of this Act to the standard weight of fat sheep of the description to which a sheep

belongs shall be construed as a reference to the figure specified as aforesaid in relation to that description of sheep in respect of the period comprising the date on which the sheep was examined for certification.

2ND SCH.
—cont.

PART IV.

INTERPRETATION OF SECOND SCHEDULE.

In this Schedule—

- (a) references to “a fat sheep subsidy year” shall be construed as references to the period of twelve months beginning on the first day of August in the year nineteen hundred and thirty-nine and in each subsequent year; and
- (b) references to the “United Kingdom sheep population” for any fat sheep subsidy year shall be construed as references to the sum of—
 - (a) the total number of sheep appearing from returns made under the Agricultural Returns Act, 1925, to have been in England and Scotland on the fourth day of June immediately preceding the commencement of that year, and
 - (b) the total number of sheep appearing from the statistics collected by the Ministry of Agriculture for Northern Ireland, to have been in Northern Ireland on the first day of the same month of June.

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